

TENTATIVE RULING

Case: **Vallejos v. City of West Sacramento**
Case No. CV2026-0372

Hearing Date: **June 4, 2026** **Department Fourteen** **9:00 a.m.**

Defendant David Alison Walker’s motion to strike the first amended complaint, prayer, and claims for punitive damage is **DENIED**. (Code Civ. Proc., §§ 435, 436; Civ. Code, § 3294.) Plaintiffs allege sufficient facts to show that defendant acted with “a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1); *Taylor v. Superior Court* (1979) 24 Cal.3rd 890, 895-896.) Specifically, plaintiffs allege facts demonstrating that “defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Hoch v. Allied-Signal, Inc.* (1994) 24 Cal.App.4th 48, 61, quotation marks omitted; FAC, p. 5, ¶ EX-2.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.